

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MATTHEW WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RAMON VELEZ, SERGEANT MICHAEL BURKE,
POLICE OFFICER MARLON WRIGHT, LT.
CHRISTOPHER MEYER, POLICE OFFICER DOYLE,
DETECTIVE DELGARDO, SERGEANT MARION,
SERGEANT PERSAUD, and POLICE OFFICERS JOHN
DOES# 1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

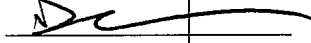
Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 9, 2014

Yours, etc.


JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER RAMON VELEZ (33rd Precinct)
SERGEANT MICHAEL BURKE
POLICE OFFICER MARLON WRIGHT (52nd Precinct)
LT. CHRISTOPHER MEYER (52nd Precinct)
POLICE OFFICER DOYLE (52nd Precinct)
DETECTIVE DELGARDO (52nd Precinct Detective Squad)
SERGEANT MARION (52nd Precinct)
SGT. PERSAUD (52nd Precinct)

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, Matthew Williams, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about March 11, 2013, at approximately 6:00 a.m., plaintiff Matthew Williams, while lawfully in and around his home located at 2592 Creston Avenue, Apt. 35, Bronx, New York, was subject to a unlawful detention, false imprisonment, false arrest, and unlawfully searched by the individually named defendant New York City police officers. Subsequently, the defendant police officers unlawfully detained plaintiff against his will for many hours and subjected plaintiff to unlawful interrogations by defendants, without cause or legal justification and unlawfully forced plaintiff to stand in line-ups against his will, without any legal basis to do so and in violation of his Fourth, Fifth and Fourteenth Amendment Rights and his right to due process under the Constitution of the United States. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, unlawfully searched plaintiff and deprived plaintiff of his due process rights in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and in violation of the Constitution of the State of New York and New York State common law.

PARTIES

2. Plaintiff MATTHEW WILLIAMS, is a resident of the County of the Bronx, State of New York.

3. Defendant POLICE OFFICER RAMON VELEZ is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

4. Defendant POLICE OFFICER RAMON VELEZ is and was at all times relevant herein assigned to the 33rd Precinct.

5. Defendant POLICE OFFICER RAMON VELEZ is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER MARLON WRIGHT is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

7. Defendant POLICE OFFICER MARLON WRIGHT is and was at all times relevant herein assigned to the 52nd Precinct.

8. Defendant POLICE OFFICER MARLON WRIGHT is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER DOYLE is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

10. Defendant POLICE OFFICER DOYLE is and was at all times relevant herein assigned to the 52nd Precinct.

11. Defendant POLICE OFFICER DOYLE is being sued in his individual and official capacity.

12. Defendant SERGEANT MICHAEL BURKE is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

13. Defendant SERGEANT MICHAEL BURKE is being sued in his individual and official capacity.

14. Defendant LIEUTENANT CHRISTOPHER MEYER is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

15. Defendant LIEUTENANT CHRISTOPHER MEYER is and was at all times relevant herein assigned to the 52nd Precinct.

16. Defendant LIEUTENANT CHRISTOPHER MEYER is being sued in his individual and official capacity.

17. Defendant SERGEANT MARION is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

18. Defendant SERGEANT MARION is and was at all times relevant herein assigned to the 52nd Precinct.

19. Defendant POLICE SERGEANT MARION is being sued in his individual and official capacity.

20. Defendant SERGEANT PERSAUD is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

21. Defendant SERGEANT PERSAUD is and was at all times relevant herein assigned to the 52nd Precinct.

22. Defendant SERGEANT PERSAUD is being sued in his individual and official capacity.

23. Defendant DETECTIVE DELGARDO is and was at all times relevant herein an officer, employee and agent of the New York City Police Department.

24. Defendant DETECTIVE DELGARDO is and was at all times relevant herein assigned to the 52nd Precinct Detective Squad.

25. Defendant DETECTIVE DELGARDO is being sued in his individual and official capacity.

26. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

27. Police Officers John Does #1-10 are being sued in their individual and official capacities.

28. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

29. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

32. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

33. The CITY OF NEW YORK did not hold a hearing pursuant to 50-h of the general municipal law.

34. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

35. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

36. On March 11, 2013, at approximately 6:00 a.m., plaintiff MATTHEW WILLIAMS was lawfully inside of his home located at 2592 Creston Avenue, Apt. 35, Bronx, New York, 10468 when the individually named defendant New York City Police Officers arrived at plaintiff's home and asked to speak with plaintiff and ordered plaintiff to exit his apartment.

37. The New York City Police Officers did not have a warrant for plaintiff's arrest, nor did they have probable cause or any legal basis to detain plaintiff.

38. Plaintiff MATTHEW WILLIAMS obeyed the order by the defendant Police Officers and exited his apartment.

39. The defendant police officers unlawfully stopped and searched plaintiff without, reasonable suspicion, probable cause, or any legal justification when he exited his apartment.

40. At no time did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff's person when they unlawfully searched him.

41. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

42. Nevertheless, the defendant police officers handcuffed plaintiff without legal justification or probable cause.

43. At no point in time did plaintiff resist arrest in anyway.

44. Defendants placed plaintiff into an NYPD vehicle against his will and transported to the 52nd precinct detective squad.

45. The Defendant police officers unlawfully detained plaintiff in a holding cell until approximately 3:30 p.m. on March 11, 2013 at which time defendants transported plaintiff against his will and without any opportunity to speak with an attorney to another building at an unknown location whereat plaintiff was forced to stand in a line-up with five individuals who did not physically resemble plaintiff in any way.

46. The Defendants forced claimant to stand in the line-up against his will for approximately one half hour.

47. Thereafter, defendants detained plaintiff in a holding cell against his will for approximately one hour.

48. A Detective then informed plaintiff that he was not selected from the line-up and that plaintiff would be transported back to the 52nd Precinct shortly.

49. Plaintiff was transported back to the 52nd precinct by defendants where the unlawful detention of plaintiff continued for several additional hours even though he was not selected from the line-up.

50. On March 11, 2013 at approximately 11:00 p.m., defendants released plaintiff from the 52nd Precinct without charging him with a crime.

51. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, interrogation, frisk, search, unlawful seizure, false arrest, false imprisonment, deprivation of due process rights, and violation of the Civil rights of plaintiff.

52. The unjustifiable stop, interrogation, frisk, search, unlawful seizure, false arrest, false imprisonment, deprivation of due process rights, and violation of the Civil rights of plaintiff by the individually named defendants caused plaintiff to sustain serious and permanent, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, unlawfully seized, unlawfully searched, falsely arrested and imprisoned, and deprived of his due process rights, without reasonable suspicion or probable cause or any legal justification, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States, right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

74. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendant police officers, defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights, common law rights, and rights under the New York State Constitution were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which is therefore responsible for their conduct.

86. Defendant City of New York as the employer of the defendant officers is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligence

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants owed a duty of care to plaintiff.

89. Defendants breached that duty of care by falsely arresting and falsely imprisoning plaintiff.

90. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

91. All of the foregoing occurred without any fault or provocation by plaintiff.

92. Defendant City of New York, as the employer of the police officer defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Matthew Williams. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

95. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

96. Defendant City of New York as the employer of the officer defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

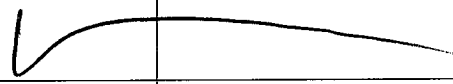
JURY DEMAND

97. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Matthew Williams demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees, inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 9, 2014

By: 

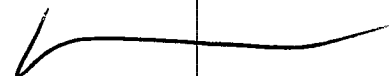
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ATTORNEY'S VERIFICATION

DAVID M. HAZAN, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 9, 2014



DAVID M. HAZAN